

OCTOBER 14, 2025

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Victory! California Requires Transparency for AI Police Reports

California Governor Newsom has signed S.B. 524, a bill that begins the long process of regulating and imposing transparency on the growing problem of AI-written police reports. EFF [supported this bill](#) and has spent the last year [vocally criticizing](#) the companies pushing AI-generated police reports as a service.

[S.B. 524](#) requires police to disclose, on the report, if it was used to fully or in part author a police report. Further, it bans vendors from selling or sharing the information a police agency provided to the AI.

The bill is also significant because it required departments to retain the first draft of the report so that judges, defense attorneys, or auditors could readily see which portions of the final report were written by the officer and which portions were written by the computer. This creates major problems for police who use the most popular product in this space: Axon's Draft One. [By design, Draft One does not retain an edit log of who wrote what](#). Now, to stay in compliance with the law, police departments will either need Axon to change their product, or officers will have to take it upon themselves to go retain evidence of what the draft of their report looked like. Or, police can drop Axon's Draft One all together.

EFF will continue to monitor whether departments are complying with this state law.

[After Utah](#), California has become the second state to pass legislation that begins to address this problem. Because of the lack of transparency surrounding how police departments [buy and deploy technology](#), it's often hard to know if police departments are using AI to write reports, how the generative AI chooses to translate audio to a narrative, and which portions of reports are written by AI and which parts are written by the officers. [EFF has written a guide to help you file public records requests that might shed light on your police department's use of AI to write police reports.](#)

It's still unclear if products like Draft One run afoul of record retention laws, and how AI-written police reports will impact the criminal justice system. We will need to consider more comprehensive regulation and perhaps even prohibition of this use of generative AI. But S.B. 524 is a good first step. We hope that more states will follow California and Utah's lead and pass even stronger bills.

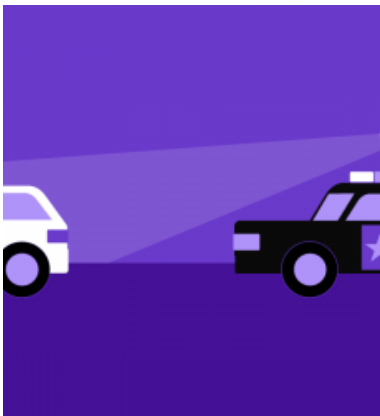


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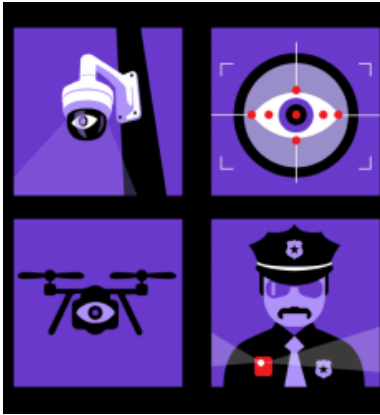
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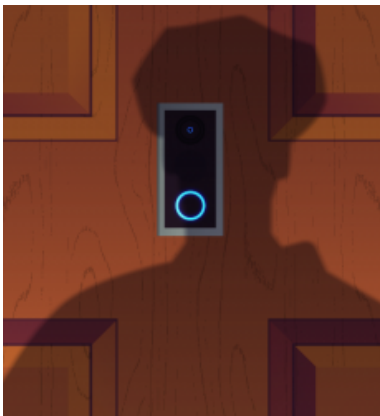
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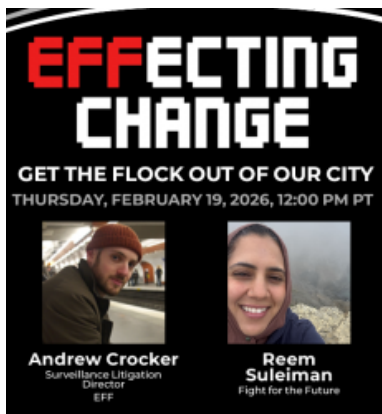
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